general's view into law.' In *Bhagat Singh and Others v. The Kings-Emperor*,[22] Viscount Dunedin concluded that a state of emergency 'is something that [did] not permit of any exact definition', but the fact that this may be so is not the same as saying that no case need be made out at all by the governor-general when invoking such an awesome power. As a state of matter calling for drastic action, 'emergency' had to be judged by someone. That someone, he wrote, could be 'the Governor-General, and he alone'.[23] In other words, emergency was whatever the governor-general felt it was; nothing else mattered.'[24]

We know from the general history of the common law during war-time that this approach was not just confined to the territories of the Empire but was used in none other a place than England itself. In the war-time case of *Liversidge v. Anderson* the same was done, except that in that case there was a thundering dissent by Lord Atkin. In the colonial territories, however, the impact of such an approach was to have profound and long-lasting effects. As Dam points out, 'Taken together, these developments made ordinances the new normal in India, both in numbers and in status. Numerically, they were vastly common – much more than in the earlier period. It was "normal" in its status too. By 1935, there were effectively two legislative authorities.' This was along with 'The Imperial Legislature [which] obviously had legislative powers'.[25]

The issue is timely and important. Pre-Independence India had competing rival approaches to the quest for freedom, which as Neeti Nair makes clear 'are seen to exemplify absolutely contrasting strategies of resistance'[26]—one based on the creed of non-violent Gandhism, the other a Marxist revolutionary call-to-arms movement championed by Bhagat Singh, who at the time of his death was more popular than Gandhi, so that had he lived the history of the Indian subcontinent would have been very different. Moreover, as S. Irfan Habib has written, with a special tribunal set up under the fiat of the governor-general specifically to hand down a judgment of death on Bhagat Singh after rag-tag judicial proceedings in which the judicial bench twice changed its judges, 'we lost an alternative framework of governance for post-independent India'.[27]